

1 ENGROSSED HOUSE
2 BILL NO. 3718

By: Caldwell (Chad) and
Crosswhite Hader of the
House

3
4 and

Daniels of the Senate
5
6

7 An Act related to education; amending 70 O.S. 2021,
8 Section 13-101.2, as last amended by Section 1,
9 Chapter 246, O.S.L. 2025 (70 O.S. Supp. 2025, Section
10 13-101.2), which relates to the Lindsey Nicole Henry
11 Scholarships for Students with Disabilities Program;
12 requiring school districts to provide consent forms
13 within certain time frame; requiring school districts
14 to make an eligibility decision for special education
15 services within certain time frame; determining
16 student eligibility when required time frame is not
17 met; including certain professional days and meetings
18 as school days; providing maximum scholarship
19 calculations for certain eligible students; requiring
20 supplement of scholarship award after certain
21 determination; and providing an effective date.

22
23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. AMENDATORY 70 O.S. 2021, Section 13-101.2, as
last amended by Section 1, Chapter 246, O.S.L. 2025 (70 O.S. Supp.
2025, Section 13-101.2), is amended to read as follows:

Section 13-101.2. A. There is hereby created the Lindsey
Nicole Henry Scholarships for Students with Disabilities Program.
The Lindsey Nicole Henry Scholarships for Students with Disabilities
Program is established to provide a scholarship to a private school

1 of choice for students with special needs who meet at least one of
2 the criteria of subparagraph a, b, c, d, e, f, or g of paragraph 1
3 of subsection B of this section. Scholarships shall be awarded
4 beginning with the 2010-2011 school year.

5 B. The parent or legal guardian of a student with a special
6 need may exercise his or her parental option and request to have a
7 Lindsey Nicole Henry Scholarship awarded for the child to enroll in
8 and attend a private school in accordance with this section and the
9 scholarship shall be awarded if:

- 10 1. a. the student has an individualized education program
11 (IEP), an individualized service plan (ISP), or meets
12 the eligibility standards for special education
13 services in accordance with the Individuals with
14 Disabilities Education Act (IDEA),
- 15 b. the student has had an individualized service plan
16 pursuant to Section 1-4-704 of Title 10A of the
17 Oklahoma Statutes any time prior to notifying the
18 State Department of Education of the intent to
19 participate in the program,
- 20 c. the student is a child of a member of the United
21 States Armed Forces who transfers to a school in this
22 state from out of state or from a foreign country
23 pursuant to a permanent change of station orders of
24 the parent,

- d. the student was in out-of-home placement with the Department of Human Services,
- e. the student was adopted while in the permanent custody of the Department of Human Services,
- f. the student is enrolling or is enrolled in a school that exclusively serves students experiencing homelessness, or
- g. the student was in out-of-home placement with the Office of Juvenile Affairs; and

2. The parent or legal guardian has obtained acceptance for admission of the student to a private school that is eligible for the program as provided in subsection # I of this section and has notified the State Department of Education of the request for a scholarship. Requests to participate in the program made after December 1 shall be granted, but funding for scholarships requested after December 1 shall not be available until the beginning of the next school year. The request shall be through a communication directly to the Department in a manner that creates a written or electronic record of the request and the date of receipt of the request. The Department shall notify the school district in which the student is enrolled, if applicable, upon receipt of the request. For purposes of continuity of educational choice, the scholarship shall remain in force until the student enrolls in a public school, graduates from high school, or reaches the age of twenty-two (22),

1 whichever occurs first. At any time, the parent or legal guardian
2 of the student may remove the student from the private school and
3 place the student in another private school that is eligible for the
4 program as provided in subsection # I of this section or place the
5 student in a public school.

6 C. 1. a. Within five (5) days after receipt of a written
7 request from a parent or legal guardian for a special
8 education evaluation, a school district shall provide
9 the parent or legal guardian with a physical or
10 electronic evaluation consent form.

11 b. If the school district provides the evaluation consent
12 form within the five-day period required by
13 subparagraph a of this paragraph, the school district
14 shall complete the evaluation and make an eligibility
15 determination within forty-five (45) school days after
16 the date the school district receives the signed
17 consent form.

18 c. If the school district fails to provide the evaluation
19 consent form within the five-day period required by
20 subparagraph a of this paragraph, the school district
21 shall complete the evaluation and make an eligibility
22 determination within forty-five (45) school days
23 beginning on the sixth day after the date the school
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1 district received the written request from the parent
2 or legal guardian.

3 d. If the school district fails to make an eligibility
4 determination within the applicable forty-five-school-
5 day period established under this subsection, the
6 student shall be deemed eligible for purposes of
7 receiving a Lindsey Nicole Henry Scholarship. For
8 purposes of this subsection, professional development
9 days and days on which parent-teacher conferences are
10 held shall be considered school days.

11 2. The maximum scholarship granted for a student found eligible
12 under this subsection shall be a calculated amount equivalent to the
13 total State Aid factors for the applicable school year multiplied by
14 the grade weight for which the student is eligible for the
15 applicable school year.

16 3. Once a school district reaches an eligibility decision and
17 determines that the student is eligible for special education
18 services, the student shall receive the remaining maximum
19 scholarship amount allowed under paragraphs 2 and 3 of subsection K
20 of this section.

21 D. A student shall be eligible for a scholarship if the parent
22 or legal guardian of the student made a request for a scholarship
23 for the 2010-2011 school year and the student transferred to an
24 eligible private school but was subsequently denied a scholarship

1 because the student did not have an IEP in effect on October 1,
2 2009, but did meet all other eligibility requirements as set forth
3 in the Lindsey Nicole Henry Scholarships for Students with
4 Disabilities Program Act.

5 ~~D.~~ E. A student shall not be eligible for a Lindsey Nicole
6 Henry Scholarship if the student is not having regular and direct
7 contact with the private school teachers at the physical location of
8 the private school.

9 ~~E.~~ F. School districts shall notify the parent or legal
10 guardian of a public school student with a special need of all
11 options available pursuant to this section and inform the parent or
12 legal guardian of the availability of information about the program
13 from the State Department of Education through the toll-free
14 telephone number or website. The notification shall be provided
15 with or included in the copy of the "Parents Rights in Special
16 Education: Notice of Procedural Safeguards" document given to
17 parents at least annually or as otherwise required by law.

18 ~~F.~~ G. Upon acceptance of a Lindsey Nicole Henry Scholarship,
19 the parent or legal guardian shall assume full financial
20 responsibility for the education of the student including, but not
21 limited to, transportation to and from the private school.

22 ~~G.~~ H. If the parent or legal guardian requests a Lindsey Nicole
23 Henry Scholarship and the student is accepted by the private school
24 pending the availability of a space for the student, the parent or

1 legal guardian of the student shall notify the State Department of
2 Education before entering the private school and before December 1
3 in order to be eligible for the scholarship during the school year
4 when a space becomes available for the student in the private
5 school. If notification is made after December 1, payment of the
6 scholarship shall not begin until the next school year.

7 ~~H.~~ I. 1. To be eligible to participate in the Lindsey Nicole
8 Henry Scholarships for Students with Disabilities Program, a private
9 school shall notify the State Department of Education of its intent
10 to participate. The notice shall specify the grade levels and
11 services that the private school has available for students with
12 special needs who are participating in the scholarship program. The
13 State Department of Education shall approve a private school as
14 eligible to participate in the scholarship program upon
15 determination that the private school:

16 a. meets the accreditation requirements set by the State
17 Board of Education or another accrediting association
18 approved by the State Board of Education. The State
19 Department of Education shall list on its website all
20 accrediting associations approved by the Board,

21 b. demonstrates fiscal soundness by having been in
22 operation for one (1) school year or providing the
23 State Department of Education with a statement by a
24 certified public accountant confirming that the

1 private school desiring to participate is insured and
2 the owner or owners have sufficient capital or credit
3 to operate the school for the upcoming year by serving
4 the number of students anticipated with expected
5 revenues from tuition and other sources that may be
6 reasonably expected. In lieu of a statement, a surety
7 bond or letter of credit for the amount equal to the
8 scholarship funds for any quarter may be filed with
9 the Department,

10 c. complies with the antidiscrimination provisions of 42
11 U.S.C., Section 2000d,

12 d. meets state and local health and safety laws and
13 codes,

14 e. will be academically accountable to the parent or
15 legal guardian for meeting the educational needs of
16 the student,

17 f. employs or contracts with teachers who hold
18 baccalaureate or higher degrees, or have at least
19 three (3) years of teaching experience in public or
20 private schools, or have special skills, knowledge, or
21 expertise that qualifies them to provide instruction
22 in subjects taught,

23 g. complies with all state laws relating to general
24 regulation of private schools, and

1 h. adheres to the tenets of its published disciplinary
2 procedures prior to the expulsion of a scholarship
3 student.

4 2. Upon approval of a private school, the State Department of
5 Education shall provide on its website all information and material
6 submitted by the private school with its application.

7 ~~I.~~ J. 1. Lindsey Nicole Henry Scholarship Program participants
8 shall comply with the following:

9 a. the parent or legal guardian shall select the private
10 school from the schools approved for eligibility
11 pursuant to subsection ~~H~~ I of this section and apply
12 for the admission of the child,

13 b. the parent or legal guardian shall request the
14 scholarship no later than December 1 of the school
15 year during which the scholarship is requested,

16 c. any student participating in the scholarship program
17 shall attend throughout the school year, unless
18 excused by the school for illness or other good cause,
19 and shall comply fully with the code of conduct for
20 the school,

21 d. the parent or legal guardian of a student who
22 qualifies pursuant to subparagraph a of paragraph 1 of
23 subsection B of this section shall agree to meet
24 annually with a representative of the private school

1 to identify the services necessary to support the
2 special needs of the student participating in the
3 scholarship program,

4 e. the parent or legal guardian shall fully comply with
5 the parental involvement requirements of the private
6 school, unless excused by the school for illness or
7 other good cause, and

8 f. upon issuance of a scholarship warrant, the parent or
9 legal guardian to whom the warrant is made shall
10 restrictively endorse the warrant to the private
11 school for deposit into the account of the private
12 school. The parent or legal guardian may not
13 designate any entity or individual associated with the
14 private school as the attorney in fact for the parent
15 or legal guardian to endorse a warrant. A parent or
16 legal guardian who fails to comply with this
17 subparagraph shall forfeit the scholarship.

18 2. A participant who fails to comply with this subsection
19 forfeits the scholarship.

20 ~~J.~~ K. Provisions governing payment of a Lindsey Nicole Henry
21 Scholarship shall be as follows:

22 1. The State Department of Education shall calculate the total
23 cost of all scholarships for all eligible students in the state.

24 The State Department of Education shall then reserve or retain from

1 the total amount appropriated to the State Board of Education for
2 State Aid purposes and any other revenue available for allocation
3 for State Aid purposes the total cost for all scholarship payments;

4 2. The maximum scholarship granted for an eligible student with
5 special needs shall be a calculated amount equivalent to the total
6 State Aid factors for the applicable school year multiplied by the
7 grade and disability weights for which the student is eligible for
8 the applicable school year. The disability weights used in
9 calculating the scholarship amount shall include all disability
10 weights which correspond to the disabilities included in the
11 multidisciplinary evaluation and eligibility group summary for the
12 student at the time the request for a scholarship is made by the
13 parent or legal guardian. The maximum scholarship amount shall be
14 calculated by the State Board of Education for each year the student
15 is participating in the scholarship program;

16 3. The amount of the scholarship shall be the amount calculated
17 in paragraph 2 of this subsection or the amount of tuition and fees
18 for the private school, whichever is less, minus up to two and one-
19 half percent (2 1/2%) of the scholarship amount which may be
20 retained by the State Department of Education as a fee for
21 administrative services rendered. If a private school does not
22 charge tuition, the amount of the scholarship shall be the amount
23 calculated in paragraph 2 of this subsection minus up to two and
24 one-half percent (2 1/2%) of the scholarship amount which may be

1 retained by the State Department of Education as a fee for
2 administrative services rendered. The amount of any assessment fee
3 required by the private school and the amount associated with
4 providing services and therapies to address the special needs of the
5 student may be paid from the total amount of the scholarship. The
6 amount of the scholarship shall be prorated to reflect the number of
7 days remaining in the current school year, if the scholarship
8 request is granted after the beginning of the school year;

9 4. The State Department of Education shall notify the private
10 school of the amount of the scholarship within ten (10) days after
11 receiving the request for a scholarship, when the total State Aid
12 factors have been determined for the current fiscal year. The
13 initial payment shall be made after the Department verifies
14 admission acceptance and enrollment. Quarterly payments shall be
15 made upon verification of continued enrollment and attendance at the
16 private school. Payment shall be made by the Department with an
17 individual warrant made payable to the parent or legal guardian of
18 the student and mailed by the Department to the private school that
19 the parent or legal guardian chooses. The parent or legal guardian
20 shall restrictively endorse the warrant to the private school for
21 deposit into the account of the private school;

22 5. The State Department of Education shall not be responsible
23 for any additional costs associated with special education and
24 related services incurred by the private school for the student

1 including the cost of teachers, equipment, material, and special
2 costs associated with the special education class;

3 6. The State Department of Education shall establish a toll-
4 free telephone number or website that provides parents or legal
5 guardians and private schools with information about the program;

6 7. The State Department of Education shall require an annual,
7 notarized, sworn compliance statement by participating private
8 schools certifying compliance with state laws and shall retain all
9 records received from a participating private school. The State
10 Department of Education shall post on its website the annual
11 compliance statement for each participating private school; and

12 8. The State Department of Education shall cross-check the list
13 of participating scholarship students with the public school
14 enrollments prior to each scholarship payment to avoid duplication.

15 ~~K.~~ L. 1. The State Superintendent of Public Instruction shall
16 deny, suspend, or revoke the participation of a private school in
17 the scholarship program if it is determined that the private school
18 has failed to comply with the provisions of this section. However,
19 in instances in which the noncompliance is correctable within a
20 reasonable amount of time and in which the health, safety, or
21 welfare of the students is not threatened, the Superintendent may
22 issue a notice of noncompliance which shall provide the private
23 school with a time frame within which to provide evidence of

1 compliance prior to taking action to suspend or revoke participation
2 in the scholarship program.

3 2. If the Superintendent intends to deny, suspend, or revoke
4 the participation of a private school in the scholarship program,
5 the Department shall notify the private school of the proposed
6 action in writing by certified mail and regular mail to the private
7 school's address of record with the Department. The Department
8 shall also notify any parents or legal guardians of scholarship
9 students attending the private school. The notification shall
10 include the reasons for the proposed action and notice of the
11 timelines and procedures set forth in this subsection.

12 3. The private school that is adversely affected by the
13 proposed action shall have fifteen (15) days from receipt of the
14 notice of proposed action to file with the Department a request for
15 an administrative hearing proceeding pursuant to the Administrative
16 Procedures Act.

17 4. Upon receipt of a request for a hearing, the State Board of
18 Education shall commence a hearing within sixty (60) days after the
19 receipt of the formal written request and enter an order within
20 thirty (30) days after the hearing.

21 5. The Board may immediately suspend payment of scholarship
22 funds if it is determined that there is probable cause to believe
23 that there is an imminent threat to the health, safety, or welfare
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1 of the students or fraudulent activity on the part of the private
2 school.

3 ~~H.~~ M. No liability shall arise on the part of the state, the
4 State Board of Education, the State Department of Education, or a
5 school district based on the award or use of any scholarship
6 provided through the Lindsey Nicole Henry Scholarships for Students
7 with Disabilities Program.

8 ~~M.~~ N. The inclusion of private schools within options available
9 to public school students in Oklahoma shall not expand the
10 regulatory authority of the state or any school district to impose
11 any additional regulation of private schools beyond those reasonably
12 necessary to enforce the requirements expressly set forth in this
13 section.

14 ~~N.~~ O. If the State Department of Education determines that a
15 school district prior to August 26, 2011, has failed to comply with
16 the provisions of the Lindsey Nicole Henry Scholarships for Students
17 with Disabilities Program Act and has failed to make full or partial
18 scholarship payments for eligible students, the Department shall
19 have authority to reduce the amount of State Aid allocated to the
20 school district or require the school district to make repayment to
21 the Department of State Aid allocations in an amount equal to the
22 amount of scholarship payments the school district failed to make.
23 The Department shall make payment to the parent or legal guardian in
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1 the amount the school district failed to make in the manner as
2 provided for in subsection ~~J~~ K of this section.

3 ~~Q.~~ P. The State Department of Education shall annually prepare
4 and post on its website a report of Lindsey Nicole Henry
5 Scholarships for Students with Disabilities Program. The annual
6 report shall include, but not be limited to, the following
7 information:

8 1. The total number and amount of scholarships awarded and
9 reported for each participating private school;

10 2. The total number of scholarships denied;

11 3. The total number and amount of scholarship payments
12 suspended for each participating private school; and

13 4. Data on participating students, disaggregated by years of
14 participation in the program, grade level, economically
15 disadvantaged status, racial and ethnic groups, and disability
16 category.

17 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 11th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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8 _____
9 Presiding Officer of the Senate